

enabled to declare the trust is the owner of the beneficial interest, and who has therefore the absolute control over the property, the holder of the legal estate being a mere instrument or conduit pipe. [Where, therefore, an antenuptial agreement that the intended wife's realty should belong to her for her separate use was signed only by the husband, the fee was not affected by the agreement so as to enable the wife to devise it as separate property (*d*). It was held in a recent case by Cave, J., that a parol agreement, entered into in contemplation of a marriage, that property consisting of a sum of money standing to the credit of the wife in her maiden name at her banker's should belong to her for her separate use, but not followed by any transfer to trustees, did not constitute a good antenuptial settlement; but the Court of Appeal, while reversing the decision upon other grounds, withheld their opinion upon the point.¹]

SECTION III.

OF THE STATUTES OF WILLS.

1. **Statute of frauds.** — By the fifth section of the Statute of Frauds (*e*), all devises of *lands* are required to be in writing and signed by the testator, or by some person in his presence and by his direction, and to be attested or subscribed in his presence by three witnesses; and by the nineteenth section, all bequests of *personal* estate are required to be in writing, with the exception of certain specified cases in which nuncupative wills were allowed (*f*).² And by the 1 Vict.

[(*d*) *Dye v. Dye*, 13 Q. B. D. 147.]

(*e*) 29 Car. 2. c. 3.

(*f*) See *Adlington v. Cann*, 3 Atk.

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19; nor a voluntary trust against a grantor or his representatives; *Borum v. King*, 1 Ad. 37 Ala. 606; nor against a third person without notice; *McCaskill v. Lathrop*, 63 Ga. 96.

¹ *Ex parte Whitehead*, 14 Q. B. D. 419.

² The statute relating to the execution of wills has been very generally enacted in the United States. See the statutes of the various states. The same formalities are required in the case of personal property as in devising real estate. 1 Jarm. on Wills, 113-144. A will, to establish a trust expressed in it, must be valid as a will. *Anding v. Davis*, 38 Miss. 574; 77 Am. Dec. 658; *Campbell v. Wallace*, 10 Gray, 162; *Ives v. Allyn*, 12 Vt. 589; *Thayer v. Wellington*, 9 Allen, 283; *Johnson v. Clarkson*, 3 Rich. Eq. 306; *Brown v.*